

Possible Inconsistencies to Review — SD38180 Opinion vs. Source Evidence

Subject

Cross-reference between the published appellate opinion in *In the Interest of K.C.G.*, No. SD 38180 (Mo. Ct. App. Southern District, decided March 25, 2024), as published on FindLaw, and the underlying evidentiary documents in the case file — including emails between M.P.G. (Baxter Springs, KS) and Children's Division staff, the TPR bench-trial transcript (June 27, 2023), and M.P.G.'s pro se appellate filings.

Important Framing

This memo is not a legal brief, a legal opinion, or any form of legal advice. Nothing in this document constitutes a finding that the opinion is incorrect, that any court committed reversible error, or that any party acted improperly. This document is the product of pattern-matching between documentary sources — emails, a transcript, and court filings — and the factual statements contained in the published appellate opinion. Documents in the file may be incomplete, may represent only one party's perspective, and may not reflect the full evidentiary record that was before the trial court. The opinion controls the legal outcome of this case unless and until it is reversed or otherwise modified by a court of competent jurisdiction.

Every item flagged below is a **possible point to review with a licensed attorney**, not a conclusion. A licensed Missouri family-law or appellate attorney should be consulted before any reliance is placed on this analysis. The attorney of record, Kristoffer R. Barefield (Springfield, MO), represented the appellant on appeal; the respondents were represented by Lindsey R. Drake (Neosho, MO). Any further legal action would require qualified counsel.

Methodology

- **Opinion source:** Published text of SD 38180, as reproduced in the case file at `SD38180-FindLaw-Published-Opinion-2024-03-25.txt`, including the Key Factual Assertions checklist (items A–M) appended to that file.
- **Source documents reviewed:** Approximately 79 extracted-text files in the `/extracted-text/` directory, including emails between M.P.G. and Jennifer Emmons (DSS supervisor), Shania Riley (DSS caseworker), and Brian Garrity (Circuit Manager); the certified TPR hearing transcript of June 27, 2023; the pro se appellant's motion for reconsideration (`38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt`); the Order Denying Rehearing and Transfer (May 2, 2024); and miscellaneous drug-test forwarding emails, address-correction emails, and check-in correspondence.
- **Method:** Each Key Factual Assertion (A–M) from the opinion was checked against relevant source documents for corroborating or potentially conflicting evidence. Assertions were not treated as false merely because a contradicting document exists — both directions of the evidence are presented.

- **Scope limitation:** The service-of-process issue (assertions I–L) was the sole point on appeal. Assertions A–H and M relate to the underlying factual record, which the opinion did not adjudicate on the merits (the court affirmed on preservation grounds). Nevertheless, these factual statements appear in the published opinion and are subject to this review.

Possible Discrepancies to Review

A. Initial Removal — "March 9, 2021 ... Child, being two years old at the time, tested positive for methamphetamine."

Opinion text: "On March 9, 2021, the Juvenile Division of the Circuit Court of Jasper County ('juvenile court') found Child to be without proper care, custody, and support after Child, being two years old at the time, tested positive for methamphetamine."

Source evidence:

- The TPR transcript confirms that K.C.G. was born October 13, 2018 (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 7, line 23–24: "Kody Corinthians Goodman was born on October 13th of 2018, making him 4 years old"). At the time of removal (January 2021), K.C.G. would have been approximately 2 years and 3 months old — consistent with "two years old."
- The transcript further confirms the positive methamphetamine test at the ER and the adjudication date of "on or about March 9th of 2021" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 16–17).
- The appellant's motion states: "On Jan 2, 2021 K.G was taken to the emergency room in Carthage Mo. and had tested positive for an illegal substance" (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 9).

Possible discrepancy to review: The opinion places adjudication on March 9, 2021, and states K.C.G. "tested positive for methamphetamine" as the basis for the finding. The appellant's motion asserts the ER visit was January 2, 2021 — roughly two months before the adjudication date. The opinion does not specify the ER-test date; it references the adjudication date. No factual conflict is apparent on the face of the documents, but it may be worth confirming with counsel whether the opinion's attribution of the positive test to the March 9 hearing, rather than to the January 2 ER visit, is accurate and complete.

Overall assessment: No clear discrepancy identified in available source documents as to K.C.G.'s age or the fact of the positive methamphetamine test. The date framing (adjudication vs. ER visit) is a possible nuance to review with counsel.

B. Case Goal — "the case goal being reunification of the family."

Opinion text: "The juvenile court ordered Child to remain in foster care, with the case goal being reunification of the family."

Source evidence:

- The transcript confirms: caseworker Jennifer Emmons testified the initial goal was "Reunification" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 17, line 11).
- The FST email from July 1, 2021, shows the Division communicating case requirements (substance abuse assessment, hair follicle, proof of employment, stable housing) to M.P.G., which is consistent with

active reunification planning (Webex-FST-Alton-Goodman-21-002-003-90-Day.txt, lines 37–47).

Possible discrepancy to review: None identified. The initial reunification goal is corroborated by both the transcript and the contemporaneous emails.

C. Father's Cooperation — "Father refused to work on a case plan or cooperate with the Division."

Opinion text: "Father refused to work on a case plan or cooperate with the Division."

Source evidence — Division's position (corroborating opinion):

- Jennifer Emmons testified at trial: "He has refused to do anything that we've asked of him" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 29, lines 24–25).
- Caseworker Shania Riley testified M.P.G. "more or less failed to engage in everything that your agency has requested him to do in the last year that you've been the worker, apart from visitation" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 70, lines 5–8).

Source evidence — potentially qualifying the characterization:

- As early as June 30, 2021, M.P.G. emailed the Division requesting a case plan and FST meeting, stating: "from my understanding my attorney still hasn't received a case plan from your team" (Webex-FST-Alton-Goodman-21-002-003-90-Day.txt, lines 172–174).
- On August 25, 2021, M.P.G. again requested the case plan be submitted to his attorney: "if you could please submit a case plan to my attorney so she has one" (Webex-FST-Alton-Goodman-21-002-003-90-Day.txt, lines 12–14).
- M.P.G.'s own trial testimony was: "I was never given a list. I was told several different things, several different ways, but never was I given a list" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 107, lines 15–17).
- Emmons acknowledged during cross-examination that M.P.G.'s then-attorney Kathleen Wolf Miller "would not respond to my emails" and "didn't attend court a handful of times" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 39, lines 6–11).
- M.P.G.'s motion states that at the motion-to-modify hearing (April 7, 2022) "counsel failed to appear every time" (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 29).
- M.P.G. submitted drug-test results, a substance-abuse assessment, a deed, checks, a tax return, photos of his home, and a four-hour parenting class certificate — all acknowledged by the Division (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Pages 30–31, 38, 73–74, 83).

Possible discrepancy to review: The opinion states Father "refused to work on a case plan or cooperate with the Division." Source documents show M.P.G. requesting a case plan in writing on multiple occasions and submitting various documents. The trial testimony of both caseworkers acknowledges receipt of these submissions, while characterizing them as insufficient or unverifiable. The opinion's unqualified statement that Father "refused" to cooperate is a possible factual point to review with counsel — specifically whether the record reflects refusal as distinct from failure to comply to the Division's satisfaction. This distinction may or may not be legally material to the affirmed judgment.

D. Drug Tests — "he further refused to take two separate drug tests in January and April of 2021."

Opinion text: "he further refused to take two separate drug tests in January and April of 2021."

Source evidence — corroborating refusal of the court-ordered tests:

- Emmons testified that M.P.G. "refused to submit to any testing" during her time as caseworker, while acknowledging he submitted self-taken screenshots that could not be verified (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 30, lines 15–24).
- Riley confirmed she had "no shows for every single hair follicle" she scheduled at Hassle Free (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 71, lines 7–9).

Source evidence — possibly qualifying or contradicting:

- M.P.G. emailed the Division on May 7, 2022: "Drug test taken in 2021 at beginning of case copy of results (negative)" (Drug-test-at-beginning-an-now-present-all-negative-4.txt, line 13; also Drug-test-negative-fwd-Garrity-5.txt, same text). The subject line of both emails is "Drug test at beginning an now present all negative."
- This email forwards the message to Circuit Manager Brian Garrity and caseworkers Jennifer Emmons and Shania Riley, with a reference to "copy of results (negative)" for a 2021 test.
- M.P.G.'s appellate motion states he "meticulously adhered to a stringent rehabilitation program" and references an exhibit — "assessment sent to Kathleen Wolf Miller" — as contradicting the claim of not doing a drug evaluation (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, pp. 286–294).
- M.P.G.'s trial testimony was that he was never asked about two specific tests in January and April 2021, and stated: "I was asked here recently to do a hair follicle, although one was Court ordered when I didn't have an attorney at the beginning of the case" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 109, lines 1–5).

Possible discrepancy to review: The opinion states Father "refused to take two separate drug tests in January and April of 2021." The source documents include a May 2022 email from M.P.G. asserting that a drug test was taken "in 2021 at beginning of case" with negative results, and forwarding what he characterized as a copy of those results to Division staff. M.P.G.'s trial testimony also does not acknowledge a flat refusal of two specific tests in January and April 2021. This is a possible factual point to review with counsel — specifically, whether the record contains sufficient corroboration for the January and April 2021 refusals as distinct from later noncompliance with hair follicle requests, and whether the self-reported negative test M.P.G. forwarded in May 2022 was evaluated in the trial record.

E. Self-Employment / Income Documentation — "Father also reported that he was self-employed but provided no documentation of income."

Opinion text: "Father also reported that he was self-employed but provided no documentation of income."

Source evidence:

- Caseworker Jennifer Emmons testified: "The only documentation that I have seen is a tax return" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 31, lines 24–25).
- Caseworker Shania Riley confirmed: "he did provide his 2022 tax return and some different checks" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 83, lines 5–6), and described receiving

"different various checks from different months" — including for metal restoration work (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 84, lines 8–15).

- The file Proof-of-income-3-2022-tax-return.txt is titled "Proof of income" and is dated April 27, 2023, addressed to Shania Riley at Jasper County Children's Division, consistent with submission of the tax return close to trial.

- In a May 2022 email chain, Emmons acknowledged receiving and docketing M.P.G.'s "self-taken UA's, tax return, and deed to the house, as well as the paternity order and test results" (Re-abuse-of-discretion-KG-1-final-1983-notice.txt, lines 460–462).

Possible discrepancy to review: The opinion states Father "provided no documentation of income." Trial testimony from both the former caseworker (Emmons) and the current caseworker (Riley) acknowledges that a tax return and checks were received. This is a possible factual point to review with counsel — specifically, whether the opinion's statement that "no documentation of income" was provided is accurate given the testimonial acknowledgment of the 2022 tax return and payment checks in the record. This distinction may or may not have been legally material to the trial court's judgment.

F. Drug Treatment — "did not provide documentation of attending or completing a drug treatment program."

Opinion text: "did not provide documentation of attending or completing a drug treatment program."

Source evidence:

- Riley testified M.P.G. "provided me documentation from Spring River Wellness of a report" but that M.P.G. "disclose[d] that he was not using any substances, so they didn't state that he did not need any services" — the agency did not count this as successful completion (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Pages 70–71, lines 12–21).

- Riley also confirmed receiving only one page of the assessment: "It was just one page. There was additional pages" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 82, lines 23–25).

- M.P.G. emailed on May 18, 2022: "a drug and alcohol assessment was completed today the drug test results and assessment results should be available to my attorney in a day or two. It was taken at the same place I received the prior tests at Spring River mental Health and wellness here in Riverton Kansas" (Re-abuse-of-discretion-KG-1-final-1983-notice.txt, lines 317–320).

- Riley's email of June 23, 2022, states: "I faxed the release and then they stated they had no records for you... I am going to try sending it again with dates on it and ask for more specific records" (Re_-Re_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, lines 125–126).

- Riley later received a fax from Spring River stating M.P.G. "did not meet criteria for a mental health disorder" (Re_-Re_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, line 52).

- M.P.G.'s appellate motion references "Exhibit assessment sent to Kathleen Wolf Miller" as contradicting the claim that no drug evaluation was done (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, pp. 286–294).

Possible discrepancy to review: The opinion states Father "did not provide documentation of attending or completing a drug treatment program." Source documents and trial testimony indicate that M.P.G. did submit one page of a Spring River Mental Health assessment to the Division, that the Division

acknowledged receiving it, and that the Division characterized it as incomplete (one page rather than the full document) and insufficient because M.P.G. denied substance use. There is also a possible factual point to review with counsel regarding the Division's difficulty obtaining records via fax from Spring River — whether that retrieval failure, documented in the email chain, was presented at trial as context for the incomplete documentation. The opinion's statement appears to describe the Division's conclusion (incomplete/unacceptable documentation) rather than the absence of any submission; counsel may wish to review whether this distinction is reflected in the trial record.

G. Criminal Charge — "he had a pending felony charge for possession of a controlled substance."

Opinion text: "he had a pending felony charge for possession of a controlled substance."

Source evidence — corroborating the pending charge early in the case:

- Emmons testified M.P.G. "had two pending possession charges in Missouri" at the time K.C.G. was placed in protective custody (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 29, lines 10–11).
- The ICPC was refused in part because of "pending drug charges" (Re_-Re_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, line 8; Re_-Re_-criminal-history.txt, line 36).

Source evidence — possibly qualifying the "pending" status as of the time of the opinion's narrative:

- In his September 15, 2022 email, M.P.G. stated: "since I no longer have any pending charges do you think that an actual background check could be completed" (Re_-Re_-criminal-history.txt, line 31) — suggesting the charges were no longer pending by September 2022.
- Also on September 15, 2022: "I also wanted to ask if the correct address was sent to the courts... since I no longer have any pending charges" (Re_-Re_-criminal-history.txt, line 31).
- The Division did not dispute this assertion in the email response, instead stating the FST meeting would address the background-check and ICPC issues.
- M.P.G.'s appellate motion states the charges "no longer exist" as of its April 2024 filing (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 31, referring to September 2022 context).

Possible discrepancy to review: The opinion describes the charge as "pending" at the time of the narrative (which covers events roughly through September 2022 when the petition was filed). Source documents indicate M.P.G. asserted the charges were no longer pending by at least September 2022, and the Division did not contradict this in the email thread. It is a possible factual point to review with counsel whether the charge was still pending as of the filing of the adoption/TPR petition on September 26, 2022, and whether the opinion's use of the present-tense "pending" accurately reflects the status as of the most relevant time period.

H. Case-Goal Change — "On April 11, 2022, the juvenile court issued a judgment modifying the case goal to termination of parental rights and adoption."

Opinion text: "On April 11, 2022, the juvenile court issued a judgment modifying the case goal to termination of parental rights and adoption."

Source evidence:

- Riley's trial testimony confirmed the case goal was changed "to termination of parental rights and adoption in April 2022" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 76, lines 12–14).
- M.P.G.'s motion states the hearing was held on "April 7, 2022" and characterizes the judgment as having been entered after multiple continuances from February 2022 during which counsel did not appear (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 29).

Possible discrepancy to review: The opinion places the judgment date as April 11, 2022; the appellant's motion refers to the hearing date as April 7, 2022. This four-day difference (hearing vs. entry of judgment) is a minor possible factual point to review with counsel; it may reflect the hearing date versus the judgment entry date, which would not necessarily be inconsistent.

I. Service of Process (Core Appellate Issue) — "special process server served the summons on Father by personal service at a Joplin, Missouri address on October 7, 2022, as evidenced by the returned summons."

Opinion text: "The special process server served the summons on Father by personal service at a Joplin, Missouri address on October 7, 2022, as evidenced by the returned summons." The opinion also notes: "A Juvenile Summons for Personal Service Outside the State of Missouri was issued for Father at an address in Baxter Springs, Kansas."

Source evidence:

- M.P.G.'s trial testimony states: "I did get served I think through – well, I got served on the TPR. I did receive a paper in the DFS office, I believe it was" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 106, lines 3–5). This ambiguous phrasing is the basis for the opinion's preservation-of-error ruling.
- M.P.G.'s July 23, 2022 email (before the October 2022 service) states: "I have not been served any court dates or anything because of this since the very start of this case" (Re-Re-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, line 98–99; Re-Re-Address-Correction-1-6.txt, lines 77–82) — referring to the wrong address in the court file.
- The address correction emails establish that the court file listed M.P.G.'s address as "8681 SE 71st Carthage Mo." — an address M.P.G. states does not exist — rather than the correct "8681 SE 71st Baxter Springs KS 66713" (Re-Re-Address-Correction-1-6.txt, lines 6–8; Re-Re-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, lines 47, 75–80).
- M.P.G.'s appellate motion states: "The court had mailed a notice to the wrong address in which the house number and street were correct not the city and State" (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 25).
- Riley's September 20, 2022 email (three weeks before service) confirms the Division had M.P.G.'s Baxter Springs address: "I have your current address as 8681 SE 71ST ST BAXTER SPRINGS, KS 66713" (Re-Re-criminal-history.txt, line 8).

Possible discrepancy to review: The opinion states the summons was "issued for Father at an address in Baxter Springs, Kansas" but "served ... at a Joplin, Missouri address." Source documents show M.P.G.

was consistently present at Joplin on Wednesdays for visits, making personal service there factually possible. However, the statute at issue (§§ 211.453.2 and 211.462.2) concerns service outside the state on a Missouri-issued summons. The fact that the summons was issued for the Baxter Springs, KS address but executed at a Joplin, MO address may be a possible point to review with counsel — specifically whether this constitutes personal service under the applicable Missouri statute or whether service at a Missouri address on an out-of-state summons creates a procedural question. The opinion's footnote 3 (assertion J) and the preservation-of-error ruling address this issue at the appellate level.

J. Filing of Returned Summons (Footnote 3) — "it was not filed with the trial court until December 18, 2023, after Father filed his notice of appeal."

Opinion text: "[T]hough the returned summons reflected service on Father on October 7, 2022, ... it was not filed with the trial court until December 18, 2023, after Father filed his notice of appeal." [Footnote 3]

Source evidence:

- This assertion is in a footnote and relates entirely to the appellate record rather than to documents in the email/evidence file. No source document in the extracted-text files directly contradicts or corroborates the December 18, 2023 filing date.
- The Order Denying Rehearing (May 2, 2024) confirms the case's procedural posture but does not address the summons-filing date (SD38180-Order-Denying-Appellant-s-Motion-for-Rehearing-and-Application-for-Transfer_FINAL_CONFIDENTIAL.txt).

Possible discrepancy to review: The late filing of the returned summons — more than 14 months after the October 7, 2022 service date, and after the notice of appeal was filed — is acknowledged in the opinion's own footnote 3. The opinion characterizes this filing gap as background context for why the preservation issue arose. This is a possible procedural-timeline point to review with counsel — specifically, whether the unexplained 14-month delay in filing the returned summons, and the fact that it was filed only after the appeal was initiated, is a procedurally significant fact that was separately evaluated or whether it is subsumed in the appellate court's preservation ruling.

K. Adoptive Parents' Mistaken Filing (Footnote 3) — "Adoptive Parents attempted to file the returned summons on October 18, 2022, but they instead mistakenly filed a service return for an unrelated juvenile case. A clerk for the juvenile court deleted the mistaken filing."

Opinion text: "Adoptive Parents attempted to file the returned summons on October 18, 2022, but they instead mistakenly filed a service return for an unrelated juvenile case. A clerk for the juvenile court deleted the mistaken filing." [Footnote 3]

Source evidence:

- No source document in the extracted-text files independently corroborates or contradicts this specific assertion. This event is described solely in the opinion's footnote and presumably derives from the appellate record and/or the clerk's file.

Possible discrepancy to review: No discrepancy identified in available source documents. This assertion is taken from within the opinion itself (footnote 3). It is a possible procedural fact to review with counsel — specifically, whether the deletion of a service return from an unrelated case, combined with the 14-month filing gap for the correct return, was raised as a due-process argument at trial or only on appeal.

L. Counsel Status Hearing — "The trial court determined that service of process had not been obtained upon Mother and extended the time for service, making no mention of whether service was obtained on Father."

Opinion text: "On October 25, 2022 ... The trial court determined that service of process had not been obtained upon Mother and extended the time for service, making no mention of whether service was obtained on Father."

Source evidence:

- The October 25, 2022 hearing is referenced in the opinion immediately after M.P.G.'s filing of a "Motion to Intervene" and pro se answer (in which M.P.G. stated he "acknowledge[d] receipt of summons"). The opinion states the trial court made no finding on Father's service at that hearing.
- M.P.G.'s trial testimony clarified the circumstances: "I did get served I think through – well, I got served on the TPR. I did receive a paper in the DFS office, I believe it was" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 106, lines 3–5). The ambiguous phrasing — "in the DFS office" — does not unambiguously confirm personal service outside the state as required by the summons form.
- The address-correction email chain (July–September 2022) shows M.P.G. was notified of, and confirmed, his Baxter Springs address. Riley's September 20, 2022 email confirms the Division had the correct address before service was attempted (Re_-Re_-criminal-history.txt, line 8).

Possible discrepancy to review: The opinion states the trial court made "no mention" of Father's service at the October 25 hearing, even though Father had already filed his pro se answer acknowledging receipt of the summons. This is a possible procedural point to review with counsel — specifically, whether the trial court's silence on Father's service, combined with the court's simultaneous appointment of counsel for Father the next day (October 26, 2022), reflects an implicit finding that service was adequate, or whether the absence of any explicit finding created the preservation problem that ultimately determined the appeal.

M. TPR Statutory Bases — "subdivisions (2), (3), and (5) of section 211.447.5" (abuse/neglect, failure to rectify, parental unfitness).

Opinion text: "The trial court terminated Father's parental rights on the bases of abuse or neglect, failure to rectify harmful conditions, and parental unfitness under subdivisions (2), (3), and (5) of section 211.447.5, respectively."

Source evidence:

- The transcript confirms all three grounds were before the court. The trial court found chemical dependency, failure to provide care, and refusal to participate in Division services — all consistent with the statutory bases cited.
- M.P.G.'s appellate motion characterizes the chemical dependency finding as "an invalid accusation of chemical dependency leveled against me without substantial evidence" (38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, pp. 369–374), and notes his submission of Spring River documentation and negative self-reported tests.
- The appellate opinion, however, did not review the merits of the termination — it affirmed solely on the preservation-of-error ruling regarding service.

Possible discrepancy to review: No discrepancy identified between the opinion's statement of the statutory bases and the trial record as reflected in the transcript. The opinion correctly summarizes the

three § 211.447.5 grounds. The possible factual points to review with counsel are whether the underlying evidence supporting each ground (particularly the chemical-dependency finding) was adequately established at trial given the submissions M.P.G. made, but the appellate court did not reach this issue.

Possible Omissions to Review

The following items appear in source documents but are not addressed in the opinion's factual summary. These are identified as **possible omissions to review with counsel** — they are not characterizations that the opinion was required to discuss, but they may be relevant context for parent-advocacy purposes.

1. Negative drug-test submissions by M.P.G. — The opinion does not acknowledge that M.P.G. forwarded what he characterized as a drug-test result from 2021 (negative) to the Division in May 2022, or that caseworkers acknowledged receiving it but treated it as unverifiable. Source: Drug-test-at-beginning-an-now-present-all-negative-4.txt, line 13; Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 30, lines 18–24.

2. Division's failure to receive records from Spring River — The opinion does not address the email chain documenting the Division's acknowledged difficulty obtaining M.P.G.'s Spring River Mental Health evaluation records via fax. The Division's fax attempts were unsuccessful until records were eventually partially received. Source: Re_-Re_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, lines 125–126, 52.

3. Pending charges resolved before TPR petition — The opinion states M.P.G. "had a pending felony charge for possession of a controlled substance" without noting that M.P.G. asserted — without apparent contradiction from the Division in the email record — that no pending charges existed by September 2022, a month before the TPR petition was filed. Source: Re_-Re_-criminal-history.txt, line 31.

4. Income documentation submitted — The opinion states M.P.G. "provided no documentation of income" but source documents and trial testimony confirm submission of a 2022 tax return, a deed, and multiple payment checks. Source: Transcript-TPR-Hearing-Kody-2023-06-27.txt, Pages 31, 83.

5. Prior custody order and parenting history — The opinion does not note that M.P.G. had a court-ordered custody arrangement predating the dependency case (every other weekend and every Wednesday overnight, with a scheduled transition to 50/50 at age 3), confirmed by M.P.G.'s trial testimony and his appellate motion. Source: Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 105, lines 17–25; 38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶¶ 6–11.

6. ICPC not completed — The opinion does not address the fact that no Interstate Compact on the Placement of Children (ICPC) evaluation was ever conducted for M.P.G.'s Kansas home. The Division's stated reason was M.P.G.'s failure to drug test; M.P.G. disputed the legal basis for withholding the ICPC. Source: Re-abuse-of-discretion-KG-1-final-1983-notice.txt, lines 147–154; Re_-Re_-criminal-history.txt, lines 28, 36.

7. Address error in court records — The opinion does not address the documented incorrect address ("8681 SE 71st Carthage Mo.") that appeared in the court file for a significant portion of the case, which M.P.G. asserted prevented him from receiving court notices. Source: Re-Re-Address-Correction-1-6.txt, lines 6–11; 38180-Motion-by-Appellant_FINAL_CONFIDENTIAL-2.txt, Background ¶ 25.

8. **Weekly in-person visitation** — The opinion does not note that M.P.G. consistently attended weekly supervised visits with K.C.G. throughout the case. Both caseworkers acknowledged this at trial. Source: Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 33, lines 1–3; Page 72, lines 17–19.

Possible Service-of-Process Issues to Review

The service issue was the sole point raised on appeal. The following is a summary of what the source documents show, cross-referenced against the opinion's assertions.

The opinion acknowledges (footnote 3):

- The returned summons was not filed with the trial court until **December 18, 2023** — more than 14 months after service on October 7, 2022, and after M.P.G. filed his notice of appeal.
- The Adoptive Parents attempted to file the returned summons on **October 18, 2022** but mistakenly filed a service return for an unrelated case; a clerk deleted the mistaken filing.
- The summons was **issued** for the Baxter Springs, KS address but **served** at a Joplin, MO address.

Source documents add the following possible context:

1. **Address discrepancy known to the Division:** Riley's September 20, 2022 email (approximately 17 days before the October 7 service date) confirms the Division had M.P.G.'s correct Baxter Springs, KS address. The email states: "I have your current address as 8681 SE 71ST ST BAXTER SPRINGS, KS 66713 – 4105. Is this correct?" (Re_-Re_-criminal-history.txt, line 8). This is a possible point to review with counsel — whether the Division transmitted the correct address to the special process server, and whether the summons was therefore issued and served at the right address.

2. **Prior notice of wrong address in court file:** As early as July 23, 2022, M.P.G. explicitly notified the Division and caseworkers: "I received a copy of the court records and the wrong address has been given in those records a big mistake that needs corrected and I'm not sure how to do it I have not been served any court dates or anything because of this since the very start of this case"

(Re_-Re_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt, lines 97–100; Re-Re-Address-Correction-1-6.txt, lines 77–82). The wrong address was "8681 SE 71st Carthage Mo." — a nonexistent address. M.P.G. corrected this on July 26, 2022: "8681 SE 71st Baxter Springs, KS. 66713" (Re-Re-Address-Correction-1-6.txt, lines 6–8). This is a possible point to review with counsel — whether the wrong address in the court file, noticed to the Division months before service, is relevant to whether proper notice was given throughout the underlying case.

3. **M.P.G.'s trial testimony on service:** M.P.G. testified: "I did get served I think through – well, I got served on the TPR. I did receive a paper in the DFS office, I believe it was" (Transcript-TPR-Hearing-Kody-2023-06-27.txt, Page 106, lines 3–5). The opinion relies on this statement, in combination with M.P.G.'s October 25, 2022 pro se answer acknowledging receipt of the summons, as establishing that M.P.G. failed to timely raise a service objection. This is a possible point to review with counsel — specifically, whether M.P.G.'s testimony that he received a paper "in the DFS office" describes the same service event as the October 7, 2022 personal service at a Joplin address documented in the returned summons.

4. **Summons issued for Kansas, served in Missouri:** The opinion notes the summons was issued as a "Juvenile Summons for Personal Service Outside the State of Missouri" for the Baxter Springs, KS address. It was actually served at a Joplin, MO address. This is a possible procedural point to review with counsel regarding whether serving an out-of-state summons on a person inside Missouri (at a different address from the one listed on the summons) satisfies §§ 211.453.2 and 211.462.2. The appellate court

declined to reach this question on the merits because the issue was not preserved.

Cited Sources

Filename | Date | What It Shows

`SD38180-FindLaw-Published-Opinion-2024-03-25.txt` | March 25, 2024 | Published appellate opinion; Key Factual Assertions A–M

`Transcript-TPR-Hearing-Kody-2023-06-27.txt` | June 27, 2023 | Full bench-trial transcript; testimony of Emmons, Riley, M.P.G., and D.R.A.

`Drug-test-at-beginning-an-now-present-all-negative-4.txt` | May 7, 2022 | M.P.G. email forwarding purported 2021 negative drug-test results to Emmons and Riley

`Drug-test-negative-fwd-Garrity-5.txt` | May 7, 2022 | Duplicate of above, forwarded to Brian Garrity

`Webex-FST-Alton-Goodman-21-002-003-90-Day.txt` | Aug. 25, 2021 (top); thread back to Mar. 2021 | FST 90-day meeting invitation; M.P.G. requests case plan be sent to attorney; Emmons lists case requirements

`Re-abuse-of-discretion-KG-1-final-1983-notice.txt` | June 9, 2023 (top); thread back to May 2022 | M.P.G. correspondence re: ICPC, jurisdiction, criminal history; Emmons acknowledges receiving tax return and deed

`Re\_-Re\_-Drug-Alcohol-Evaluation-and-mental-health-evaluation-3.txt` | Aug. 9, 2022 (top); thread back to June 2022 | Riley confirms Spring River fax failure; mental health evaluation no-criteria result; address question

`Re\_-Re\_-criminal-history.txt` | Sept. 20, 2022 (top); thread back to Aug. 2022 | Riley confirms correct Baxter Springs address; M.P.G. states pending charges no longer exist; Division acknowledges hair follicle at Hassle Free scheduled

`Re-Re-Address-Correction-1-6.txt` | July 26, 2022 | M.P.G. explicitly identifies wrong address in court file ("Carthage Mo."); provides correct Baxter Springs KS address

`Monthly-Check-In-5-Hassle-Free-hair-follicle.txt` | Jan. 31, 2023 | Riley schedules hair follicle at Hassle Free for Feb. 1, 2023

`Proof-of-income-3-2022-tax-return.txt` | Apr. 27, 2023 | M.P.G. email titled "Proof of income" sent to Riley close to trial date

`38180-Motion-by-Appellant\_FINAL\_CONFIDENTIAL-2.txt` | Apr. 9 / Apr. 20, 2024 | M.P.G. pro se motion for reconsideration; factual background; references exhibits including drug evaluation and tax return

`SD38180-Order-Denying-Appellant-s-Motion-for-Rehearing-and-Application-for-Transfer\_FINAL\_CONFIDENTIAL.txt` | May 2, 2024 | Court order denying rehearing and transfer

`no-subject-11-2-missed-visits.txt` | May 25, 2022 | M.P.G. reports children did not show up for visits for two consecutive weeks

Limitations

- **Source documents may be incomplete.** The extracted-text files represent a subset of the case record — primarily emails between M.P.G. and Division staff, one hearing transcript, and M.P.G.'s own filings. The full court record, including all prior juvenile orders, social service plans, and exhibits admitted at trial, is not fully available in this file set.

- **OCR and extraction errors.** Extracted text from scanned or PDF-rendered documents may contain transcription errors. Quoted material should be verified against original documents where legally significant.

- **Events outside this email record.** Some events referenced in the opinion (e.g., specific January 2021 and April 2021 drug-test requests; the October 18, 2022 clerk deletion event; the December 18, 2023 summons filing) are not reflected in any email in this file set and may have occurred through other

channels not captured here.

- **The opinion's preservation-of-error ruling is independently dispositive.** Regardless of any factual inconsistencies identified in this memo, the appellate court's ruling was based entirely on the failure to preserve the service-of-process claim at trial. Even if every factual assertion in the opinion were shown to be imprecise, the preservation ruling would stand as an independent legal basis for affirmance unless vacated by a court of competent jurisdiction. This memo does not evaluate that legal question.

- **One-party perspective.** The emails in this record are largely authored by or collected by M.P.G. They reflect his perspective and communications; they do not include Division internal records, case notes, or social service plans that may present additional context.

- **No attorney-client relationship.** This memo was prepared for informational purposes for inclusion in a parent-advocacy mobile application. It does not substitute for review by a licensed attorney.